

24VECV01890 24VECV01890

County: los-angeles

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Case Number: 24VECV01890 Hearing Date: July 22, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Okemia Terenda

Barnes,

Plaintiff,

v.

Property Plus, LLC,

Defendant.

Case Number Department

24VECV01890 107

COURT'S [TENTATIVE]

ORDER RE:

Motion for Summary Judgment,

or in the alternative, Summary
Adjudication

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

Plaintiff

Okemia Terenda Barnes ("Plaintiff") resided in Unit 22 at 8623 Cedros Avenue, Panorama City, California 91402 (the "Subject Property"). (Complaint ¶ 7.) The Subject Property was owned, managed, operated, controlled, inspected, maintained, cleaned, repaired, guarded, supervised, renovated, and/or secured by Defendants Property Plus LLC and Does 1 to 100. (Complaint ¶ 7.) Plaintiff experienced plumbing issues and reported them to Defendants Property Plus LLC and Does 1 to 100. (Complaint ¶ 8.) Plaintiff alleges she was entering the bathroom at the Subject Property when she slipped on "liquid, slippery, slick and/or wet substance [that] was emanating or coming from the Subject Ceiling . . ." (Complaint ¶ 9.) Plaintiff sustained injuries. (Complaint ¶ 11.)

On April 25, 2024, Plaintiff filed a complaint against Defendants Property Plus LLC and Does 1 to 100, alleging causes of action for: (1) general negligence; and (2) premises liability.

On November 20, 2025, Defendant Property Plus LLC ("Defendant") filed a motion for summary judgment, or in the alternative, summary adjudication (the "Motion"). On July 2, 2026, Plaintiff filed an opposition. On July 10, 2026, Defendant filed a reply.

II.

PLAINTIFF'S EXHIBIT

Plaintiff's notice of

lodging states Plaintiff's Exhibit 1 can be accessed through a Dropbox link. (Notice of Lodging.) The court was unable to access Exhibit 1 through the Dropbox link. As such, the court has not considered Plaintiff's Exhibit 1 in

ruling on the Motion.

III.

DEFENDANT'S OBJECTIONS

Defendant submits

objections to portions of Jesse Neal's and Okemia Barnes' declarations.

Evidence

Grounds

Ruling

Neal

Declaration ¶ 9, "As will be detailed below, it is my opinion, based on the below referenced material, that Plaintiff suffered a fall due to an unsafe condition of the premises and within an area that was maintained far below industry and reasonable standards."

Lacks

foundation; improper expert opinion; speculation and conjecture; improper legal conclusion; irrelevant.

Sustained

Neal

Declaration ¶ 11, "to the extent Neal relies upon and repeats alleged statements that a former employee told Plaintiff 'that the plumbing in the building needed to be ripped out and replaced' and that persons associated with Defendant informed Plaintiff that Defendant was 'cheap with the parts they use for repairs,' followed by Neal's conclusion: 'This indicates that Defendant had actual notice of the defective condition of their property and actively contributed to its presence.'"

Hearsay;

multiple hearsay; lacks foundation and personal knowledge; speculation and conjecture; improper expert opinion; improper legal conclusion; irrelevant.

Sustained

Neal

Declaration ¶ 12 “The subject incident occurred in a multi-unit apartment complex. When water issues of any kind arise in buildings of this kind, it is best practice to hire a licensed plumber to perform inspections and repairs. A licensed professional would be better suited to provide an accurate diagnosis of the underlying issue and recommend the appropriate remedies. Defendant should not have hired a handyman to perform plumbing-related work on this property, no matter how seemingly insignificant it may seem.”

Lacks

foundation; improper expert opinion; speculation and conjecture; irrelevant.

Sustained

Neal

Declaration ¶ 13, “including the assertions that Plaintiff’s complaints and other plumbing issues demonstrate a ‘concerning trend,’ that Defendant demonstrated a ‘refusal to address the root cause’ of the occurrences, and that ‘[a] licensed professional would be better suited to uncover this.’”

Lacks

foundation; speculation and conjecture; misstates and assumes facts not in evidence; improper expert opinion; irrelevant.

Sustained

Neal

Declaration ¶ 14, “Their combined testimonies revealed concerning trends in the management and maintenance of the subject premises. They did not have any proactive maintenance plans for the plumbing. They rely on the Department of Housing inspections to notify them of concerns with the building. None of them could identify the type of plumbing that is present in the building. None of them could recall when the building was last repiped. None of them have ever examined plumbing plans for the building. Furthermore, no one could recall if any permits were pulled for any plumbing work done on the property. This is information that is crucial to know to perform work that meets industry and reasonable standards.”

Lacks

foundation; speculation and conjecture; improper expert opinion; misstates and selectively characterizes deposition testimony; irrelevant.

Sustained

Neal

Declaration ¶ 15, "I conducted research into the available building records from the Los Angeles Department of Building Safety and inspected two documents that reflect the most recent plumbing permits that were filed for the apartment complex." And: "In the last 40 years, records show these are the only two permits pulled for any plumbing work done on the premises."

Hearsay;

best evidence/secondary evidence; lack of authentication and foundation.

Sustained

Neal

Declaration ¶ 15, "According to the testimony of the property owner, Nonna Podolosky, there have been several major issues since 2015 that she called a plumber for, which included pipe repairs. This indicates that the work was done without a permit. However, this work requires permits, and records show that there were not any permits issued for any work done in response to these leaks...

Lacks

foundation; speculation and conjecture; assumes facts not in evidence; improper expert opinion; hearsay.

Sustained

Neal

Declaration ¶ 16, "In my professional opinion, Defendant Property Plus LLC and their agents displayed negligence in the maintenance of their apartment complex by hiring handymen to perform plumbing work, performing work without permits, and lacking crucial knowledge about their building. Their actions directly caused the [subject incident]."

Lacks

foundation; speculation and conjecture; improper legal conclusion; conclusory

expert opinion without reasoned explanation; irrelevant and lacking probative value absent identification of a causal mechanism.

Sustained

Barnes

Declaration ¶ 5, "I was advised on at least one occasion that the leaks were caused by the upstairs neighbor."

Hearsay;

lacks foundation and personal knowledge.

Sustained

Barnes

Declaration ¶ 5, "I was advised on at least one occasion that the landlord would choose the cheapest repair options which is why the repairs would not last."

Hearsay;

lacks foundation and personal knowledge; speculation and conjecture; improper lay opinion.

Sustained

Barnes

Declaration ¶ 5 "On at least one occasion, I was told it was not an issue with the upstairs neighbor, it was a plumbing issue."

Hearsay;

lacks foundation and personal knowledge; improper lay opinion; vague and ambiguous.

Sustained

Barns

Declaration ¶¶ 3-5 "to the extent Plaintiff contends that the historical leaks were manifestations of the same continuous or recurring plumbing defect that caused the July 1, 2022 incident."

Lacks

foundation and personal knowledge; improper lay opinion; speculation and conjecture; irrelevant.

Sustained

IV.

TIMELINESS

A

motion for summary judgment "may be made at any time after 60 days have elapsed since the general appearance in the action or proceeding of each party against whom the motion is directed or at any earlier time after the general appearance that the court, with or without notice and upon good cause shown, may direct." (Code Civ. Proc., § 437c, subd. (a)(1).) "The motion shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise. The filing of the motion shall not extend the time within which a party must otherwise file a responsive pleading." (Code Civ. Proc., § 437c, subd. (a)(3).)¿

¿

Per Code of Civil

Procedure section 437c, subdivisions (a)(2), (b)(2) and (4):

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Notice of the motion and supporting

papers shall be served on all other parties to the action at least¿81¿days before the time appointed for hearing.

If the notice is served by mail, the required¿81-day¿period

of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required¿81-day¿period of notice

shall be increased by two court days . . . An

opposition to the motion shall be served and filed not less than¿20¿days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise . . . A reply to the opposition shall be served and

filed by the moving party not less than 11 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise.

The

Motion was originally set for hearing April 22, 2026. Defendant filed and served the Motion by electronic mail on November 20, 2025. (Motion pdf p. 43.) November 20, 2025, is more than 81 days, plus two court days for electronic service, before April 22, 2026. Thus, the Motion was timely filed and served. The opposition and reply were also timely filed.

V.

LEGAL

STANDARD

“A

party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).)

“Code

of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, original italics)

“A

defendant moving for summary judgment has the initial burden of presenting evidence that a cause of action lacks merit because the plaintiff cannot establish an element of the cause of action or there is a complete defense.” (Gordon v. Continental Casualty Company (“Gordon”) (2024) 107 Cal.App.5th 89, 99.) “When the defendant moves for summary judgment, in those circumstances in which the plaintiff would have the burden of proof by a preponderance of the evidence, the defendant must present evidence that would preclude a reasonable trier of fact from finding that it was more likely than not that the material fact was true [citation], or the defendant must establish that an element of the claim cannot be established, by presenting evidence that the plaintiff ‘does not possess and cannot reasonably obtain, needed evidence.’” (Padilla

v. Rodas (2008) 160 Cal.App.4th 742, 747.)²

"If

the defendant satisfies this initial burden, the burden shifts to the plaintiff to present evidence demonstrating there is a triable issue of material fact." (Gordon, supra, 107 Cal.App.5th at pp. 99-100.) To establish a triable issue of material fact, the party opposing the motion "must produce substantial responsive evidence[.]" (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 162-163.)³ Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Gordon, supra, 107 Cal.App.5th at p. 99.)⁴

VI.

DISCUSSION

Defendant moves for

summary judgment, or in the alternative, summary adjudication of Plaintiff's negligence and premises liability causes of action. (Motion p. 2.) Defendant argues Plaintiff testified at her deposition the last leak occurred in 2020, two years before the incident, so Plaintiff cannot establish that Defendant had notice of the specific dangerous condition that caused her injury. (Motion p. 3.)

In opposition, Plaintiff

argues Defendant had actual and constructive knowledge of ongoing leak issues because Defendant knew Plaintiff had complained several times over the course of eight years, Defendant never called a licensed plumber about the leaks, Defendant took no affirmative steps to maintain the plumbing, and Defendant did not know if or when any re-piping had been done. (Opposition p. 2.)

The elements of a

negligence cause of action are: (1) a legal duty to use due care; (2) a breach of such legal duty; and (3) the breach was the proximate or legal cause of the resulting injury. (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.) The elements of a cause of action for premises liability are the same as those for a negligence cause of action. (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.)

In Evans v.

Thomason (1977) 72 Cal.App.3d 978, 985, the Court of Appeal stated: "[i]n

light of the landlords' admitted notice and knowledge of the serious consequences, the trial court could only conclude that the landlords did not exercise ordinary care in the management of their property and, therefore, violated their statutory duty under Civil Code section 1714."

Plaintiff alleges she slipped and fell on July 1, 2022. (Complaint ¶ 14; Defendant's Separate Statement No. 1.) Defendant states in the separate statement that "Plaintiff testified that the last leak prior to her slip and fall occurred in 2020." (Defendant's Separate Statement No. 3.) Defendant also states "[a]fter the leak in 2020, Plaintiff did not complain regarding a leak from her bathroom ceiling again until after the incident in July 2022." (Defendant's Separate Statement No. 6.) Defendant cites portions of Plaintiff's deposition testimony. (Defendant's Separate Statement Nos. 3, 6.)

Plaintiff testified at her deposition that when she fell on July 1, it "was the first time that that had happened in several months." (Defendant Ex. B pdf p. 30.) Plaintiff also testified that between the fifth and eleventh leaks, she made verbal complaints relating to those leaks. (Defendant Ex. B pdf p. 35.) During the deposition, the following exchange occurred:

Q. Okay. I think let's just talk about the date of the incident.

[¶] . . . [¶]

Okay. So the time before you slipped. I know you said you don't remember a lot about that time, but do you remember how - - you said it was a few months, I think, before the time that you slipped and fell?

A. Yeah. I fell in July, and I feel like there wasn't a issue before - - I think there was a issue during the whole COVID, when everybody was shut in. There was an issue then. And then by 2022, we were back outside, so during COVID, during the whole stay-at-home, there was an issue.

Q. Okay. You mean 2020?

A. Yeah. 2020. Because I

-- the actual thing happened in 2022, so -- yeah.

Q. Okay. And that was -

- sorry. That was the last time there was a leak from the bathroom ceiling vent before the July 1, 2022 fall?

A. Yeah, that I recall.

(Defendant Ex. B pdf pp.

41-42.)

Plaintiff's deposition

testimony is unclear as to when the last time Plaintiff witnessed a leak before the incident on July 1, 2022. On the one hand, Plaintiff testified the last leak was "several months" before the incident. (Defendant Ex. B pdf p. 30.) On the other hand, Plaintiff testified the last leak occurred in 2020. (Defendant Ex. B pdf pp. 41-42.) Plaintiff testified she verbally complained about the fifth through eleventh leaks. (Defendant Ex. B pdf p. 35.)

Defendant's separate

statement cites no evidence showing Defendant repaired the leak that occurred before the July 1, 2022, incident. (Defendant's Separate Statement.) Further, Plaintiff's deposition testimony suggests she witnessed leaks from 2014 to 2022. (Defendant Ex. B pdf p. 29.) Plaintiff testified all twelve leaks were coming from the bathroom ceiling. (Defendant Ex. B pdf p. 31.) Plaintiff testified that for each of the times between the fifth and eleventh leaks, she made verbal complaints relating to those leaks. (Defendant Ex. B pdf p. 35.) Plaintiff also testified she experienced infrequent leaks coming from the ceiling over "almost ten years[.]" (Defendant Ex. B pdf p. 40.)

In reply, Defendant

argues historical leaks do not establish notice of the July 1, 2022, dangerous condition and Plaintiff has no evidence Defendant created the condition. (Reply pp. 3-6.) But Defendant bears the initial burden of presenting evidence that Plaintiff's causes of action lack merit.

(Gordon,

supra, 107 Cal.App.5th at p. 99.) Further, the court resolves doubts in favor of the opposing party. (Id.)² Here, Defendant's evidence shows Plaintiff reported multiple leaks occurring from the same place for almost ten years.

Resolving doubts in Plaintiff's favor, this evidence supports an inference Defendant had notice of the condition. Defendant has not met its burden of showing there are no triable issues of material fact.

VII.

CONCLUSION

For
the foregoing reasons, the Motion is denied.

Dated: July 22, 2026 _____ Hon.
Eric Harmon

Judge of the Superior Court